BY ORDER OF THE SUPERINTENDENT

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Law

USAF ACADEMY MANAGEMENT AND USE OF GIFT FUNDS

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This instruction implements Air Force Policy Directive (AFPD) 51-5, *Administrative Law, Gifts, and Command Relationships.* This instruction implements United States Air Force Academy (USAFA) policy for the management and use of gift funds and it applies to all USAFA agencies. USAFA accepts gift funds under the authority of 10 USC 2601, *General Gift Funds*; AFPD 51-5, *Air Force Policy Directive, Administrative Law, Gifts and Command Relationships*, AFI 51-506, *Gifts to the Department of the Air Force From Domestic and Foreign Sources*, and AFI 51-601_USAFASUP, *Gifts to the Department of the Air Force*. This instruction does not authorize the solicitation of gifts by Air Force (AF) personnel. Solicitation of gifts to the Air Force is prohibited by the DoD Financial Management Regulation Volume 12 Chapter 30 paragraph 300502. This instruction applies to all United States Air Force Academy (USAFA) personnel. This publication does not apply to Air Force Reserve Command (AFRC) units or the Air National Guard (ANG). Refer recommended changes and conflicts between this and other publications to HQ USAFA/A8D, 2304 Cadet Drive, Suite 3800, USAF Academy CO 80840, on AF Form 847, *Recommendation for Change of Publication.* The authorities to waive requirements in this publication are identified with a Tier 3 (T-3) number following the compliance statement. See AFI 33-360, *Publications and Forms Management*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority. The waiver authority for non-tiered requirements in this publication is the HQ USAFA/CC. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322, *Records Management and Information Governance Program*, and are disposed in accordance

with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. Major changes include: 1) clarifies the status of gift funds as appropriated funds; 2) mandates the use of the Government Purchase Card (GPC) for gift fund expenditures; 3) mandates compliance with the Federal Acquisition Regulation (FAR) when purchasing with gift funds; 4) eliminates HQ USAFA/JA legal review for listed recurring events; 5) allows Mission Element leaders to approve honoraria up to $5,000; 6) raises the per person meal limit to $65 and the per person beverage limit to $10; 7) mandates use of Mitchell Hall funds for cadet food before use of gift funds for cadet food.

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1. Acceptance Authority.

1.1. **Gifts to the Air Force.** AFPD 51-5*, Administrative Law, Gifts and Command Relationships*, and AFI 51-506, *Gifts to the Department of the Air Force From Domestic and Foreign Sources,* establish procedures for receiving, accepting, and processing gifts offered to the AF and USAFA.

1.2. **Obligation Authority.** 10 USC 2601 authorizes the Secretary of the Air Force to accept, hold, administer, and spend any gift, devise, or bequest of real property made on the condition that the gift be used for the benefit, or in connection with, the establishment, operation or maintenance, of any organization within the AF. This authority has been implemented by the referenced AF instructions along with this instruction. This obligation authority extends to the Federal fiscal and contract law authorities necessary to obligate the funds as gift funds. The obligation of Gift Funds accepted by the USAFA or other proper authority for the use and benefit of the USAFA is set forth in this instruction.

1.3. **Contracting Authority.** Gift funds are appropriated funds, although not all of the restrictions applicable to appropriated funds apply to gift funds. Nevertheless, appropriated fund guidelines and procedures IAW the FAR apply to contracting actions using gift funds, unless the unique nature of gift funds allows otherwise. Organizations should consult with USAFA Gift Funds Management Division (A8D) and the 10th Contracting Squadron (10 CONS). Follow the guidance in **paragraph 5.3**, Coordination of Gift Fund Expenditures, for all other gift fund requirements.

2. Gift Fund Management.

2.1. **Gift Fund Accounts.** A8D will establish and monitor Gift Fund accounts to track the use of Gift Funds.

2.1.1. A gift sub-account will be established by A8D for all conditional and unconditional gifts to ensure the funds are used for the purpose intended by the donor.

2.1.2. A8D will monitor the use of gift funds to ensure adequate funds are available to cover Gift Fund obligations/requests.

2.2. **Acceptance Process.** A8D will receive an Offer of Gift (see **Attachment 2** for format) for support of a designated program or capital project from a donor organization or individual donor and prepare an acceptance package coordinated through the USAFA Staff Judge Advocate (JA), with copies to the Mission Element (ME) or Director of Staff (DS) and sub-organization benefiting from the offer. The package will consist of an electronic Staff Summary Sheet (eSSS), acceptance letter to the donor for signature by the appropriate acceptance authority, the Offer of Gift, instructions on providing information regarding how the donation is to be used, and instructions on appropriate stewardship. A check may be considered a gift offer if there is a notation in the "for" line designating which program it supports or it contains other supporting documentation. A check received without an Offer of Gift will be returned unless a proper gift offer follows. An Offer of Gift from a business or organization must include two signatures.

2.2.1. Gifts of real property will follow the USAFA/A4 process outlining policies, roles, and responsibilities in the planning, design and execution of privately funded (cash and GIK) projects. Any gifts containing a naming or donor recognition component will comply with the most recent USAFA local donor naming and recognition policy found on A8D's Sharepoint.

2.2.2. Accepted Gift Funds. If accepted, A8D will deposit the check to the General Gift Fund account maintained by the Defense Finance and Accounting Service (DFAS) using a DD Form 1131, *Cash Collection Voucher*. A8D will track the funds in the Gift Fund accounts described in **paragraph 2.1**

2.3. **Notice of Availability of Gift Funds.** A8D will notify the appropriate organization when the gift funds are available. Organizations are then authorized to submit funding approval requests. The organization may access the money IAW **paragraph 5**

2.4. **Processing Excess Gift Funds.** In the event an entire restricted gift cannot be spent for the intended purpose, A8D will contact the funding organization/donor to determine if an alternate use for an item on the Gift Opportunities List is acceptable. If there is not an appropriate alternate use, the remaining funds should be returned to the funding

organization/donor. If the donor is deceased or does not respond to requests, A8D will work with JA to determine if the remainder of the gift may be used for a different purpose.

2.5. **Stewardship.** The organization receiving the benefit of the gift will, upon notification of acceptance of a gift, send a thank you letter to the donor, providing a copy to A8D for file within 14 days. If appropriate, the organization should consider inviting the donor to participate in or observe the program made possible or enriched by the gift (at no expense to the government).

2.5.1. Upon receiving notification from the USAFA Endowment of a gift to benefit a certain department or program, the head of that department or program will write a thank you letter to the donor of the gift and provide the letter to the USAFA Endowment, with a copy to A8D, within 10 days of the notification.

3. Guidance for Using Gift Funds. Gift funds are to be used for the benefit of the Academy, subject to the terms of the gift, devise, or bequest. They are not to be used for any purpose: (a) that calls into question the business relationship between the AF and the donor, or (b) when the use of gift funds for a particular purpose would not be in the best interest of the USAFA or the AF. Determining what is in the best interest of the USAFA is a discretionary matter, and the exercise of that discretion should include consideration of public perception and legislative or regulatory intent against certain expenditures.

3.1. **Regulation Prohibitions.**

3.1.1. Gift funds cannot be combined with Official Representation Funds (ORF) to fund the full cost of an ORF event without prior approval of SAF/AA. (see paragraph 8.1.4., AFI 65-603, *Official Representation Funds – Guidance and Procedures,* and SAF/AA letter, 1 August 2007).

3.1.2. When using conditional Gift Funds, the funds must be spent in accordance with the conditions set by the donor. However, gifts of money accepted by the USAFA are appropriated_funds and a donor cannot authorize an impermissible use of these funds (AFI 51-506).

3.1.3. A government employee may not spend government funds with the primary purpose of gaining personal benefit for themselves, their family, or friends (DoD5500.07-R)

3.1.4. A government employee should avoid any action that creates even the appearance of legal or ethical violations (DoD5500.07-R)

3.2. **Discretionary Considerations.** Prior to spending Gift Funds, the approval authority must consider the following factors:

3.2.1. Is the purpose of the expenditure official in nature? All requests for expenditure of gift funds for meals and/or refreshments (unless listed on the A8D Sharepoint site per **Attachment 4**) must be justified on the basis of why the expenditure is necessary, and not just desirable, to the success of an official Academy purpose.

3.2.2. If an individual benefits from the expenditure of funds, is that individual's participation in the event required?

3.2.3. Would the general public perceive the amount of the expenditure and/or the per person benefit to be wasteful or extravagant?

3.2.4. Are there specific limitations on spending other government funds for the proposed purpose?

3.2.5. Does the expenditure create an appearance of misuse of position?

3.2.6. Is the individual approving the use of gift funds the primary beneficiary?

3.2.7. Funds shall not be spent to directly benefit spouses and family members if their participation is voluntary and not required.

3.3. **Appropriate/Inappropriate Uses.**

3.3.1. Appropriate Uses.

3.3.1.1. The donor may designate the purpose; however, all discretionary considerations will be taken into account (i.e., donor intent does not make an inappropriate expenditure appropriate).

3.3.1.2. Projects or programs approved on the Gift Opportunities List (i.e., Academic Excellence, Character Development, Athletic Development, Institutional Advancement, Heritage, Admissions and Military Training Programs).

3.3.1.3. USAFA events that are not eligible for Operations and Maintenance (O&M) funding , ORF, or non-appropriated funding (i.e., official graduation social activities, Parents' Weekend activities, cadet or donor recognition events, events held in conjunction with sports, officially established award ceremonies (see **paragraph 3.3.1.14**)). Support for visitors to USAFA associated with these events who are not eligible for O&M or non-appropriated funding (i.e., donors, parents, distinguished graduates).

3.3.1.4. USAFA personnel invited as co-hosts and designated in writing by the ME commander hosting the official event. DoD spouses may be included in the official party at such events when (a) a spouse/spouses of authorized guests are invited and expected to attend and the authorized host determines that attendance of DoD spouses is appropriate and desirable under the circumstances, or (b) when cadets will be present and the ME commander determines that it is necessary for spouses to attend consistent with the guidance found in **Attachment 3**. Ratio of co-hosts to guests should be taken into consideration by the ME commander. Exceptions must be coordinated through the appropriate ME commander, A8D, JA, and approved by the Superintendent (USAFA/CC) or designee.

3.3.1.5. Mandatory cadet attendance at official functions (this does not include organizational/squadron dining-outs or dining-ins or events that cadets attend voluntarily). This may include the provision of snacks/light refreshments at mandatory cadet training events when the ME commander determines that snacks/light refreshments are necessary to enhance the training purpose because of the nature of the stress placed on cadets and their rigorous schedule. Cadet training events will be held on base at USAFA unless specifically approved by the USAFA Vice Superintendent (USAFA/CV). Gift funds will only be used under this paragraph when Mitchell Hall funds are either not available or not adequate to meet the need.

Requests for gift funds for this purpose will explain why Mitchell Hall funds are not used or are inadequate.

3.3.1.6. USAFA/CC or the ME commander will make the decision considering the criteria in **Attachment 3** if meals for senior staff, and possibly spouses, in developmental and mentoring situations with cadets is appropriate. If deemed appropriate the per-person cost of meals using gift funds may not exceed $65.00. Exceptions must be coordinated through the appropriate ME commander, JA, A8D, and approved by the USAFA/CC or designee.

3.3.1.7. The USAFA/CC or the ME commander will make the decision considering the criteria in **Attachment 3** if alcoholic beverages for receptions/meals in conjunction with developmental and mentoring situations with cadets is appropriate. This includes events hosted at the Carlton House, the Otis House, and the Heritage House. If appropriate, beverages purchased with gift funds are limited to non-alcoholic beverages, beer, and wine unless specifically approved by the USAFA/CV. The per-person cost for beverages using gift funds may not exceed $10.00. Exceptions must be coordinated through the appropriate ME commander, JA, A8D, and approved by the USAFA/CC or designee.

3.3.1.8. An organizational off-site meeting for permanent party personnel and/or cadets may be considered an official function, and gift funds may be used to secure the venue. However, gift funds are not appropriate to pay for meals for those attending. The planning organization should consult with JA prior to commitment of funds.

3.3.1.9. Light refreshments at workshops, conferences and symposia that include non-USAFA personnel as substantive participants. Do not invite non-USAFA personnel solely for the purpose of allowing the use of gift funds for this purpose.

3.3.1.10. Mementos for official visitors.

3.3.1.10.1. Mementos for non-USAFA active duty members or DoD employees will be limited to $20 or less in value. Mementos for non-DoD official visitors should be of a reasonable cost in keeping with the occasion.

3.3.1.10.2. Mementos (including coins) purchased with gift funds must be controlled prior to presentation. Accountability logs for mementos presented should include recipient's name, reason for presentation, date, and presentation location.

3.3.1.11. Honoraria. Mission Elements may approve honoraria paid with gift funds up to $5,000 per individual (excludes other travel expenses). Mission Elements must coordinate with JA, A8D, and the Director of Communications (CM) for review before approval. Honoraria between $5,000-$10,000 paid with gift funds must be submitted to JA, A8D, and CM for review, and to the USAFA/CV for approval. See Section 5 for pre-coordination requirements. In keeping with the Superintendent's vision to advance the level of excellence in cadet programs, and in order for USAFA to retain the ability to attract the highest level of visiting speakers, honoraria in amounts exceeding $10,000 may be paid for widely-attended special events, after JA, A8D, and CM review, with USAFA/CC approval.

3.3.1.12. Travel for official business including cadet club activities.

3.3.1.13. Purchase of equipment or accountable property that increases the productivity or effectiveness of an organization or morale of a squadron. Such property, once purchased, becomes government property and will be managed as such.

3.3.1.14. Organizational and/or departmental awards and/or ceremonies that are either established in an Air Force or USAFA Instruction, or that have been specifically endowed by a donor for the purpose of the particular award.

3.3.2. Inappropriate Uses.

3.3.2.1. Purposes outside the parameters of the gift offer.

3.3.2.2. Expenses that do not specifically support an official event.

3.3.2.3. Miscellaneous expenses charged to hotel rooms by guests of USAFA (e.g., telephone calls, movie rentals, sundries).

3.3.2.4. Organizational or squadron dining-in, dining-out, picnics, socials, and other like events.

3.3.2.5. Meals or refreshments for an organizational or department function other than an awards ceremony. For awards ceremonies refer to **paragraph 3.3.1.14**

3.3.2.6. Expenses for social events intended primarily for the entertainment or benefit of DoD officials and employees, their families, or personal guests. Gift funds are not authorized for Quarterly Awards ceremonies.

3.3.2.7. Meals for spouses or family members who are attending an official event voluntarily and not in an official capacity. Consideration should be made consistent with the guidance found in **Attachment 3** and in **paragraph 3.3.1.6** of this instruction. Exceptions to this policy must be coordinated through the appropriate ME commander, JA, A8D and approved by the USAFA/CC or designee.

3.3.2.8. Expenses for the cost of meals and refreshments for USAFA permanent party personnel in connection with routine working meetings (e.g., staff meetings, hot washes, faculty orientations (other than Dean of Faculty (DF) level orientation, see A8D Sharepoint instructions located at **Attachment 4**) trainings, planning meetings, etc.).

3.3.2.9. Mementos, coins, gifts, to include gift cards (i.e.; farewell, graduation, retirement, promotion) for USAFA permanent party members or cadets.

3.3.2.10. Gift funds should not be used to support or assist fundraising efforts for private organizations (i.e.; Association of Graduates (AOG), USAFA Endowment (UE), Falcon Foundation, Air Force Academy Athletic Corporation (AFAAC)).

3.3.2.11. Payment of individual memberships in organizations.

3.3.2.12. Official portraits of any USAFA permanent party member or cadet.

4. Gift Opportunities Process.

4.1. A8D will request prioritized inputs to the Gift Opportunities List from MEs [Commandant of Cadets (CW), Dean of Faculty (DF), Department of Athletics (AD), 10th Air Base Wing (10 ABW), Preparatory School (PS), and the Director of Staff (DS)] in November for the following academic year. The 306th Flying Training Group (306 FTG) may submit opportunities through A3/9. The above organizations, through their Resource Advisors (RA), will request inputs from subordinate organizations, validate those inputs, and submit them to A8D. Submissions from the Director of Staff organizations [primarily Public Affairs (PA), Admissions (RR), Chaplain (HC), Protocol (DSP), Diversity Office (CCD), Sexual Assault Prevention and Response Office (CVS), Strategic Communications (CM), and Center for Character and Leadership Development (CCLD)] should be routed through DS for approval prior to submission to A8D. Formats for submissions are found on the A8D SharePoint site. A8D will then have JA conduct a legal review before submitting the inputs to the corporate process.

4.1.1. Inputs should, for the most part, be for Margin of Excellence programs/projects such as, but not limited to, cadet functions, official TDYs, conference/symposium support, equipment, guest speaker honoraria, cadet clubs support, recruiting materials, character and leadership development programs, etc., but cannot be for anything that is specifically prohibited by statutes or federal regulations (e.g., personal gifts). Funding for essential mission requirements may be considered on a limited basis.

4.1.1.1. Margin of Excellence programs are nominally defined as those programs which substantially enhance the cadet experience and contribute to their academic, athletic, military character and leadership, spiritual, and social growth. They cannot be for anything that violates specific statutory prohibitions on use of government funds.

4.1.2. Each input must comply with template requirements and requires a budget or breakdown of the estimated funding level, how the money will be spent, the timeline for the requirement, the benefit to cadets, and whether it is considered "margin of excellence" or "mission" (O&M Funds).

4.2. Following prioritization of inputs from the MEs and DS, A8D will meet with the USAFA Gift Opportunities Top 30 Working Group to develop the Academy's Top 30 priorities, and present to the USAFA/CC for approval.

4.3. Upon approval by the USAFA/CC, A8D will forward the coordinated Gift Opportunities List to private organizations who have requested the list and to the MEs and DS. The private organizations may use this list to designate programs they wish to support through gift funds. If USAFA receives a notification of intent to support a program through future gifts, A8D will notify the appropriate RA and organization that may benefit from these future gifts so they can consider these potential gift funds in their strategic plans.

4.4. **Out-of-Cycle Gift Needs/Opportunities (not identified on the Gift Opportunities List).** Needs that were not identified during the annual process can be submitted to A8D at any time throughout the year in the same format as a submission processed IAW **paragraph 4.1.1**

5. Process for Obtaining Approval, Obligating, and Expending Gift Funds.

5.1. **Authorized Purpose.** The Gift Opportunities List identifies programs that are in need of financial support from monies that are donated to USAFA. Gift funds may only be used for authorized expenses. Expenses for anything that violates specific statutory prohibitions on the use of government funds will not be approved. In order to be certain the expenditure is authorized, organizations must submit an eSSS through JA and A8D to their ME and/or USAFA/CC/CV, as required, for approval before any expenditure. DS organizations will submit the eSSS to the USAFA/CV, through JA, A8D, and the DS. The eSSS will include all pertinent information concerning the requested expenditure. See **paragraph 5.3** All requests for expenditure of gift funds for meals and/or refreshments not listed on the A8D Sharepoint site per **Attachment 4** must be accompanied by a justification stating why the expenditure is necessary, and not just desirable, to the success of an official Academy purpose. Requests that do not contain the justification will be returned to the requester.

5.1.1. Recurring Institutional Events. The A8D Sharepoint site, per **Attachment 4**, contains an updated list of institutional events that the Superintendent has determined to be necessary to the completion of the USAFA mission. For events on the list, JA review is not necessary unless there is a substantive change to the event as previously approved. These events do not require specific justification for the provision of food or refreshments. Submit the eSSS to A8D for determination of funds availability and to the ME approval authority for final approval.

5.1.2. Unauthorized Obligations and/or Expenditures. Approval of expenditures and notice of availability of funds must be received before any funds are obligated or committed. Committing funds without authorization can result in individual pecuniary liability. An example of committing funds without authorization is personally signing an agreement with a hotel to provide food and services for a symposium without prior approval.

5.1.3. Unrestricted Funds for USAFA Organizations. Occasionally, a donor or donor organization will offer a gift of unrestricted funds to the Superintendent, MEs or a DS organization. The intent of these unrestricted funds is to allow the Superintendent, MEs or DS organizations to support official events not eligible for ORF or Non-Appropriated Fund (NAF) funding and unprogrammed requests that could not be determined when the Gift Opportunities List was published. **Paragraph 3.3** provides examples of "appropriate" and "inappropriate" uses of these funds.

5.2. **Use of Government Purchase Card for Gift Fund Expenditures.** The General Services Administration (GSA) Federal Supply Service awarded a single schedule contract for Government-wide Commercial Credit Card Service. The contractor (hereinafter referred to as the Bank) provides commercial purchase cards and associated services to AF agency/organization components. The Bank provides commercial gift fund Government Purchase Card (GPC) and associated services to military members and federal civilian employees to make official purchases. The card is used to pay for official gift fund expenses in accordance with guidance set forth in this instruction and AFI 64-117, *Air Force Government-Wide Purchase Card (GPC) Program*. The gift fund GPC is used to make only authorized gift fund purchases.

5.2.1. Gift Funds. Gift funds are appropriated funds from a permanent appropriation (10 USC 2601) to be used for official purposes of the Academy. While they are a type of appropriated funds, the nature of these funds as gift funds allow more latitude with respect to their expenditure. The Comptroller General of the United States has declared that:

> Where the Congress authorized Federal officers to accept private gifts or bequests for a specific purpose, often subject to certain prescribed conditions as to administration, authority must of necessity be reposed in the custodians of the trust fund to make expenditures for administration in such a manner as to carry out the purposes of the trust and to comply with the prescribed conditions thereof without reference to general regulatory and prohibitory statutes applicable to public funds.

Thus, gift funds may be spent for things that may be otherwise prohibited or limited when using public funds, such as entertainment (hotels (incidentals are NOT included), food, drink, decorations, etc.). For this purpose, SAF/AQC established special GPC codes to allow use of the gift fund GPC for these authorized purposes.

5.2.2. General Policies and Procedures. AFI 64-117 contains general policies and procedures to include training, Approving Official (AO) appointment, account set-up, cancellation of GPC accounts, lost or stolen cards, making GPC purchases, purchase limits, and other program guidance. Use of the gift fund GPC for gift fund purchases will follow these guidelines. See Section 3 of this instruction for guidance on authorized and unauthorized gift fund GPC purchases.

5.2.3. Establishing Gift Fund GPC Program Accounts. Gift fund GPC Program authority will be held by the RA or other designee for the DF, each DF department, the Commandant of Cadets, the Athletic Department, the enlisted aides for the Carlton, Otis and Heritage houses, and the USAFA Preparatory School, and DS organizations. A8D will determine the number of GPCs issued to programs. Cardholders will manage gift fund GPCs separately from other types of GPCs.

5.3. **Coordination of Gift Fund Expenditures.**

5.3.1. Only the CC, CV, and MEs or their designees may approve the use of gift funds. Any delegations by CC, CV, and MEs must be in writing and a copy provided to A8D and JA. Any non-concurs in the expenditure approval process will go to the delegation authority for final approval.

5.3.2. Travel Orders. Travel Orders will be accomplished using the Defense Travel System (DTS).

5.3.2.1. Organizations must contact A8D so that funds can be loaded to the correct line of accounting prior to creating the orders in DTS. A gift fund travel request form, will need to be accomplished by the organization in order to receive an LOA. Organizations will create an approval routing list in DTS that includes A8D coordination when gift funds are being used.

5.3.2.2. Incoming speakers who choose to not travel via DTS will be provided an all-inclusive honoraria which includes travel.

5.3.2.3. Organizations must contact A8D for any Foreign and Domestic Conference or Competition Registration Fees, along with Foreign Honoraria that needs to be wired to a receiving financial institution using the applicable DFAS process.

5.3.3. For an event. If funds are to be spent on an event to which guests are invited (e.g., conference, symposium, award recognition, etc.), the eSSS should include the purpose and date of the event, break-down of costs, and a guest list. For events that cannot be paid for with a GPC, contact the 10 CONS.

5.3.4. For Contract Personnel. Examples include Oral History, Scholarship of Teaching and Learning, Just-In-Time Teaching, Digital Library and Social Decorum. The requesting organization should notify their RA and forward a purchase request (PR) package to the 10 CONS via the Financial Management System. This flow should include manpower approval verifying the requirement does not circumvent established hiring processes. Contracts will be awarded in accordance with the FAR subject to competition requirements on the type of goods and services purchased.

5.3.5. For other purposes. For approval to obligate gift funds for other purposes identified in the Gift Opportunities List (i.e., travel, honoraria, mementos, equipment, books, etc.), submit an eSSS to verify appropriateness of expenditure and availability of funds to JA and A8D for coordination and to the ME for approval. DS organizations should include DS for coordination and the USAFA/CV as the approving authority. Only warranted Contracting Officers are authorized to sign a contract or agreement to pay money on behalf of USAFA. Expenditures of gift funds in excess of the Government Purchase Card limit requires action by 10 CONS.

5.4. **Accountability Procedures.** A8D will:

5.4.1. Track financial requirements and TDY expenses on the Financial Management designated systems.

5.4.2. Run reports from the DFAS website to verify expenditures are posted to the correct Gift Fund accounts.

5.5. Processes for Obligating Gift Funds and Paying for Approved Gift Fund Expenditures for Goods and Services.

5.5.1. Government Purchase Card. The requesting organization will use their GPC in accordance with the following process:

5.5.1.1. The organization must obtain approval through the eSSS process to expend Gift Funds using the guidance in Section 5.

5.5.1.2. The organization will work with A8D to determine timing and need of funds. A8D will process a request to load funds to the GPC through FM within five business days to move funds from various applicable accounts, then process an AF Form 4009, *Government Purchase Card Fund Cite Authorization,* through FM within three business days to load funds to the organization's GPC.

5.5.1.3. Upon GPC cycle close out, the organization will provide the card statement and receipts to the A8D organizational tasker box. A8D will remove funds from GPCs when required monthly documentation isn't received by the 28th of each month. Please coordinate extension requests with A8D.

5.5.1.4. The organization must inform A8D when the approved GPC spending is complete and funds can be returned to their account. A8D will then process an AF Form 4009 through FM to return the funds to their account until they are needed again in the future.

5.5.1.5. A8D will remove funds from all Gift Fund GPCs at the end of each fiscal year per FM, in preparation for the new fiscal year. Remaining Gift Funds are returned to their respective accounts and rolled over to the new fiscal year.

5.5.2. Gift Funds Contracts. An organization may be required to work with the 10th Contracting Squadron to negotiate a contract if a GPC cannot be used for a required expense.

5.5.2.1. An organization must obtain approval through the eSSS process to expend Gift Funds using the guidance in Section 5. Once approval is obtained, email the approved tasker, and requested amount to A8D. The Gift Fund LOA will be provided at that time for the organization's RA to route a Air Force Form 9, *Request for Purchase,* in the DFAS system. A8D will externally coordinate in the FM system before the Form 9 goes to FM.

5.5.3. Expenditure of personal funds for official purposes is prohibited.

5.6. **Honoraria Payments.** The requesting organization will use their GPC in accordance with the following process:

5.6.1. An organization must obtain approval through the eSSS process to expend Gift Funds using the guidance in Section 5. Once approval is obtained, email a completed USAFA Form 52, *Gift Funds GPC Worksheet,* to A8D for honoraria to be paid with the gift fund GPC card if the guest speaker can receive payments via Square or PayPal. If the speaker cannot receive payment via Square or PayPal or the honoraria is over the established GPC services limit, then they will be paid using the SF 1034 method. Allow 6-8 weeks for payment. The USAFA Form 52, *Gift Funds GPC Worksheet*, along with the current honoraria GPC limits and processes can be found at the A8D Sharepoint link per instructions at **Attachment 4**.

TYLER P. FRANDER Colonel, USAF
Director, Strategic Plans, Programs and Requirements

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

10 USC 2601, *General Gift Funds,* 25 November 2015

FAR – *Federal Acquisition Regulation*

JER DoD 5500.07-R, 17 November 2011

AFPD 51-5, *Air Force Policy Directive, Administrative Law, Gifts and Command Relationships*, 31 August 2018

AFI 33-322, *Records Management and Information Governance Program,* 23 March 2020

AFI 33-360, *Publications and Forms Management*, 1 December 2015

AFI 36-3501, *Air Force Academy Operations,* 28 December 2018

AFI 51-506, *Gifts to the Department of the Air Force From Domestic and Foreign Sources*, 16 April 2019

AFI 51-601_USAFASUP, *Gifts to the Department of the Air Force,* 20 November 2013

AFI 65-603, *Official Representation Funds – Guidance and Procedures,* 24 August 2011

AFI 64-117, *Government Purchase Card Program,* 22 June 2018

USAFAI 36-2809, *USAF Academy Cadet Awards Program,* 1 April 2009

Prescribed Forms

USAFA Form 52, *Gift Funds GPC Worksheet*

Adopted Forms

AF Form 9, *Request for Purchase*

AF Form 847*, Recommendation for Change of Publication*

AF Form 4009, *Government Purchase Card Fund Cite Authorization*

DD Form 1131, *Cash Collection Voucher*

SF 1034, *Public Voucher for Purchase of Services and other than Personal*

Abbreviations and Acronyms

10 ABW—10th Air Base Wing

306 FTG—306th Flying Training Group

AD—Athletic Director

AFAAC—Air Force Academy Athletic Corporation

AFPD—Air Force Policy Directive

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFRIMS—Air Force Records Information Management System

ANG—Air National Guard

AO—Approving Official

AOG—Association of Graduates

APF—Appropriated Fund

CC—Commander/Superintendent

CDO—Chief Diversity Officer

CM—Director of Strategic Communications

CV—Vice Superintendent

CW—Commandant of Cadets

DF—Dean of Faculty

DFAS—Defense Finance and Accounting Service

DS—Director of Staff

DSP—Protocol

DoD—Department of Defense

DTS—Defense Travel System

ESSS—Electronic Staff Summary Sheet

FAR—Federal Acquisition Regulation

FM—Directorate of Finance

FMA—Directorate of Finance Accounting Liaison Division

FSS—Force Support Squadron

306 FTG—306 Flying Training Group

GPC—Government Purchase Card

GSA—Government Services Administration

HQ—Headquarters

JA—Judge Advocate

NAF—Non-Appropriated Fund

ME—Mission Element

O&M—Operations and Maintenance

ORF—Official Representation Funds

PA—Public Affairs

PS—Preparatory School

PR—Purchase Request

RA—Resource Advisor

RR—Directorate of Admissions

SAF/AA—Secretary of the Air Force/Administrative Assistant

TDY—Temporary Duty

UE—USAFA Endowment

USAFA—United States Air Force Academy

Attachment 2

SAMPLE OFFERS OF GIFT

A2.1. Monetary Offer of Gift - from an Individual. KNOW ALL MEN BY THESE PRESENTS:

That I,_____, the owner of the property listed below, do hereby voluntarily give, transfer, convey and assign said property, free and clear of all encumbrances, to the Secretary of the Air Force, acting on behalf of the United States of America, to have and to hold the same forever, relinquishing for myself, my executors, administrators, heirs and assigns all ownership, rights, title, interest and possession therein to the donee absolutely:

Description of Gift and Dollar Value:

_____

_____

The herein described gift and transfer of said property does not entail the granting by the donee of special concessions or privileges to me or my executors, administrators, heirs and assigns. The herein described gift and transfer of said property is made for the benefit of, or use in, connection with the establishment, operation, or maintenance of the United States Air Force Academy or other institution or organization under jurisdiction of the Department of the Air Force, in conformance with 10 U.S.C. 2601.

<Donor Signature>_____
<Dated>_____

Donor Printed Name:_____
Address:_____
Address:_____
Phone:_____
Email:_____

A2.2. Monetary Offer of Gift - from a Business or Other Organization KNOW ALL MEN BY THESE PRESENTS:

That _____, a corporation, the owner of the property listed below, acting by and through (Name of Corporate Officer Signing_____). (The President), (One of its Vice Presidents) (_____), does hereby voluntarily give, transfer, convey and assign said property, free and clear of all encumbrances, to the Secretary of the Air Force, acting on behalf of the United States of America, to have and to hold the same forever, hereby relinquishing for itself, its successors and assigns all ownership, rights, title, interest and possession therein to the donee absolutely:

Description of Gift and Dollar Value:

_____

_____

_____

The herein described gift and transfer of said property does not entail the granting by the donee of special concessions or privileges to the donor.

The herein described gift and transfer of said property is made for the benefit of or use in connection with the establishment, or maintenance of (The United States Air Force Academy) or other institution or organization under the jurisdiction of the Department of the Air Force, in conformance with 10 U.S.C. 2601.

IN WITNESS WHEREOF the (Name of Company) has affixed its seal and caused this instrument to be executed by (Name of Person Signing), (The President), (One of its Vice Presidents) (_____), for and on behalf of the (Name of Company) this (Day) of (Month) (Year).
_____(Name of Company)

_____ By (Signature)
CERTIFICATE
I, (Name_____), certify that I am the (Secretary) (Assistant Secretary) (_____) of the (Name of Company_____), a corporation; that (Name_____), who signed this Offer of Gift, dated _____, on behalf of the (Name of Company_____), is (The President) (A Vice President) of the (Name of Company_____); and that said Offer of Gift was duly signed for and on behalf of said corporation by authority of its governing body and is within the scope of its corporate powers.
(Second Signature Required)
Date_____ Secretary Signature:_____
Printed Name_____
Title:_____
Address:_____
Address:_____
Phone:_____
Email:_____

A2.3. Offer of Gift in Kind - from an Individual KNOW ALL MEN BY THESE PRESENTS:

That I,_____, the owner of the property listed below, do hereby voluntarily give, transfer, convey and assign said property, free and clear of all encumbrances, to the Secretary of the Air Force, acting on behalf of the United States of America, to have and to hold the same forever, relinquishing for myself, my executors, administrators, heirs and assigns all ownership, rights, title, interest and possession therein to the donee absolutely:
Gift in kind which is valued at (please describe gift and affix dollar value):_____
_____
_____
The herein described gift and transfer of said property does not entail the granting by the donee of special concessions or privileges to me or my executors, administrators, heirs and assigns.

The herein described gift and transfer of said property is made for the benefit of, or use in, connection with the establishment, operation, or maintenance of the United States Air Force Academy or other institution or organization under jurisdiction of the Department of the Air Force, in conformance with 10 U.S.C. 2601.

<Donor Signature>_____
<Dated>_____

Donor Printed Name:_____
Address:_____
Address:_____
Phone:_____
Email:_____

A2.4. Offer of Gift in Kind - from a Business or Other Organization KNOW ALL MEN BY THESE PRESENTS:

That _____, a corporation, the owner of the property listed below, acting by and through (Name of Corporate Officer Signing_____). (The President), (One of its Vice Presidents) (_____), does hereby voluntarily give, transfer, convey and assign said property, free and clear of all encumbrances, to the Secretary of the Air Force, acting on behalf of the United States of America, to have and to hold the same forever, hereby relinquishing for itself, its successors and assigns all ownership, rights, title, interest and possession therein to the donee absolutely:
Gift in Kind which is valued at (please describe gift and affix dollar value:
_____
_____
_____
The herein described gift and transfer of said property does not entail the granting by the donee of special concessions or privileges to the donor.
The herein described gift and transfer of said property is made for the benefit of or use in connection with the establishment, or maintenance of (The United States Air Force Academy) or other institution or organization under the jurisdiction of the Department of the Air Force, in conformance with 10 U.S.C. 2601.

IN WITNESS WHEREOF the (Name of Company) has affixed its seal and caused this instrument to be executed by (Name of Person Signing), (The President), (One of its Vice Presidents) (_____), for and on behalf of the (Name of Company) this (Day) of (Month) (Year).
_____(Name of Company)

_____ By (Signature)
CERTIFICATE
I, (Name_____), certify that I am the (Secretary) (Assistant Secretary) (_____) of the (Name of Company_____), a corporation; that (Name_____), who signed this Offer of Gift, dated _____, on

behalf of the (Name of Company_____), is (The President) (A Vice President) of the (Name of Company_____); and that said Offer of Gift was duly signed for and on behalf of said corporation by authority of its governing body and is within the scope of its corporate powers.

(Second Signature Required)
Date_____ Secretary Signature:_____
Printed Name_____
Title:_____
Address:_____
Address:_____
Phone:_____
Email:_____

Attachment 3

CONSIDERATIONS FOR AUTHORIZING MEALS AT EVENTS WITH CADETS

A3.1. The Department of Defense's gift fund statute (10 USC 2601): provides that the Secretary of the Air Force may spend any gift accepted on the condition that the gift is used for the benefit, or in connection with, the establishment, operation, or maintenance of an Air Force institution or organization. As such, gifts accepted by USAFA can be spent for the benefit of, or in connection with, the operation or maintenance of USAFA. The Superintendent is responsible for developing and mentoring cadets, and for ensuring the entire staff has that same focus and objective.

A3.1.1. The Superintendent may determine that spending gift funds to purchase meals for senior staff, and possibly their spouses, is necessary to further USAFA's purpose of effectively developing and mentoring cadets in various official and social situations and that the USAFA's functions could not be accomplished as satisfactorily or as effectively from the government's standpoint without spending these funds. It is reasonable to believe that cadets may be more comfortable talking to senior leadership and other adults whom they do not know or with whom they have little in common in these less formal social settings. Developing that skill set is an important part of officer development, since these are social scenarios common in the active-duty Air Force. It is likewise common at these events for senior leadership's spouses to be present, along with the spouses or "significant others" of military personnel attending.

A3.2. Food is normally considered a personal expense for military personnel. However, there are times when appropriated funds are authorized to purchase food for military personnel. AFI 65-603, *Official Representation Funds – Guidance and Procedures*, discusses uses and constraints on appropriated "official representation funds," which includes authorizing the payment of meals and refreshments for the hosting official, senior members of their staff and spouses in certain circumstances. While the purposes for this exception are likely varied, one reasonable purpose would be to ensure that those senior officials who have a heavy representational role do not get monetarily penalized based on the significant number of official functions they are required to attend. The "representational meals" served to these senior officials often greatly exceed what they would spend if they were dining in their own homes. This same rationale could be applied to justify the purchase of meals for USAFA's senior leaders and their spouses, who attend many dozens (if not hundreds) of functions with cadets and others, solely in an official developmental or mentoring role. Donors likely contemplate this type of social interaction between senior officials and cadets.

A3.3. The Government Accountability Office guidance indicates that the criteria for discretionary expenditures from gift funds is that they must be necessary (not just desirable) to further an official purpose of the agency and that the agency's functions could not have been accomplished as satisfactorily or as effectively from the government's standpoint without the expenditure. The Superintendent, and those senior leaders he designates, is responsible for making the decision as to whether an expenditure of USAFA's gift funds is necessary to further an official USAFA purpose, and whether USAFA's functions could not have been accomplished as satisfactorily or as effectively from the government's standpoint without the expenditure of those gift funds. These decisions would include whether gift funds should be spent on meals for senior personnel, and possibly their spouses, and whether spouses should attend events with cadets.

Attachment 4

RECURRING USAFA INSTITUIONAL EVENTS THAT ARE APPROVED FOR GIFT FUND EXPENDITURE

A4.1. Please go to the main page of the A8D Sharepoint site to see a list of approved events. If you do not have access to the USAFA Sharepoint, please contact the A8D office to obtain a copy of the list.

These events must comply with the provisions of this instruction, but are generally approved as being appropriate for the expenditure of gift funds. They do not require a JA review or justification for food, etc. **NOTE:** Programs with a requirement for refreshments/meals must contact Mitchell Hall for funding/provision of food for cadets.